Constitutional Law: Article 13 & Article 14

Judicial Review, Basic Structure Doctrine, and the Architecture of Equality

Comprehensive Classroom Lecture Notes

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Recapitulation: The Doctrine of Basic Structure and Judicial Review of Constitutional Amendments

The discourse on the limits of Parliament's amending power under Article 368 is foundational to Indian constitutional jurisprudence. This section provides a detailed, systematic exposition of the evolution of the Basic Structure Doctrine, the reaction of the executive through constitutional amendments, and the ultimate judicial reaffirmation of constitutional supremacy.

The Genesis: Article 368 and the 24th Constitutional Amendment

To understand the conflict, one must begin with the text of Article 368 as it stood after the 24th Constitutional Amendment Act, 1971.

Article 368, Sub-clause (3) (Introduced by the 24th Amendment):

"*Nothing in Article 13 shall apply to any amendment made under this article.*"

Consequential Amendment — Article 13(4):

"*Nothing in this article shall apply to any amendment of this Constitution made under Article 368.*"

Legal Effect: These provisions were designed to create a watertight separation between the power of constitutional amendment and the limitations imposed by fundamental rights. Parliament sought to declare, in unambiguous terms, that an amendment to the Constitution under Article 368 was not "law" within the meaning of Article 13(2), and therefore, could not be invalidated on the ground that it violated Fundamental Rights. This was Parliament's direct legislative response to the doubt raised in *I.C. Golaknath v. State of Punjab* (1967).

Kesavananda Bharati v. State of Kerala (1973): The Pronouncement of a Constitutional Identity

The 24th Amendment's attempt to confer unlimited amending power was tested before the largest Constitutional Bench in Indian history.

- **Bench Strength:** 13 Judges.
- **Judgment Ratio:** 7:6 (A wafer-thin majority).
- **Core Holding:** By a slender majority, the Court overruled *Golaknath* and held that Parliament **can** amend any part of the Constitution, including Part III (Fundamental Rights). However, the amending power is not absolute. Parliament **cannot** amend the Constitution in a manner that destroys or abrogates its **"Basic Structure"** or "essential identity."

The Judicial Elaboration of "Identity" and "Basic Structure"

The judgment is celebrated for the concept of implied and inherent limitations on the amending power, articulated most prominently by **Chief Justice S.M. Sikri**.

Justice Sikri's Ratio: "Identity of the Constitution"

1. The Constitution possesses a fundamental identity, an essential character, which constitutes its core.
2. While Article 368 grants the power to amend, it does not grant the power to destroy this identity.
3. Since Article 368 does not explicitly prescribe any limitation, the limitation that one cannot destroy the Constitution's identity is an **implied** or **inherent** limitation.
4. This implied limitation compels Parliament to not alter the identity of the Constitution.

Illustrative Constituents of the Basic Structure (as identified by various judges):

i. **Supremacy of the Constitution.**

ii. **Republican and Democratic Form of Government:** You cannot amend the Constitution to install a monarchy or a foreign ruler. The sovereign, democratic character is immutable.

iii. **Secularism:** The secular fabric of the nation is part of the basic structure.

iv. **Federalism:** The federal character and distribution of powers between the Union and States.

v. **Separation of Powers:** The division between the legislature, executive, and judiciary.

vi. **Jurisdiction of the Supreme Court under Articles 32, 136, 141, 142.**

vii. **Fundamental Rights:** While all Fundamental Rights are not per se basic structure, the majority clarified that some fundamental rights are so foundational that their destruction would violate the basic structure. They are not all co-extensive, but the essence of Part III is protected.

The Executive's Retort: The 42nd Constitutional Amendment Act, 1976 (The "Mini-Constitution")

The judgment in *Kesavananda Bharati* was perceived as a direct curb on parliamentary sovereignty, particularly by Prime Minister Indira Gandhi. The response was the 42nd Amendment, a sweeping set of changes enacted during the Emergency, often termed a "Mini-Constitution" for the sheer volume and impact of its provisions.

Amendment to Article 368: Clauses (4) and (5)

To nullify the Basic Structure Doctrine, Parliament inserted two new clauses into Article 368.

1. **Article 368(4): Abolition of Judicial Review of Constitutional Amendments.**

"No amendment of this Constitution (including the provisions of Part III) made or purporting to have been made under this article whether before or after the commencement of section 55 of the Constitution (Forty-second Amendment) Act, 1976 shall be called in question in any court on any ground."

Analysis: This clause was a direct ouster of the judiciary's jurisdiction. It declared that no court could question the validity of any constitutional amendment, past or future, on *any ground whatsoever*. The intent was to strip the judiciary of the very power it had asserted in *Kesavananda Bharati* — the power of judicial review over amendments.

2. **Article 368(5): Declaration of Unlimited Amending Power.**

"For the removal of doubts, it is hereby declared that there shall be no limitation whatever on the constituent power of Parliament to amend by way of addition, variation or repeal the provisions of this Constitution under this article."

Analysis: This was a declaratory provision stating, with absolute clarity, that Parliament's power to amend the Constitution was plenary, unlimited, and free from any fetters, including those of "basic structure."

Minerva Mills Ltd. v. Union of India (1980): The Restoration of Constitutional Balance

The 42nd Amendment's assault on judicial review was challenged and decisively struck down.

The *Suo Motu* Judicial Review: Although the immediate issue was a challenge under Article 31C, the Supreme Court, particularly justices like **Y.V. Chandrachud** and **P.N. Bhagwati**, took *suo motu* cognizance of the validity of Sections 4 and 5 of the 42nd Amendment.

The Twin Holdings in *Minerva Mills*:

1. **Constitutional Supremacy, not Parliamentary Supremacy:** The Court declared that the Indian constitutional scheme vests supremacy in the **Constitution**, not in Parliament. Parliament is a creature of the Constitution and must act within its limits.
2. **Judicial Review is the Basic Structure:** The power of judicial review of constitutional amendments is an integral and essential feature of the Constitution's basic structure.
    - Consequently, **Article 368(4)** (the ouster of judicial review) was struck down as violative of the basic structure.
    - **Article 368(5)** (the declaration of unlimited power) was also struck down, as it sought to destroy the limited nature of the amending power, which itself is part of the basic structure.

The Final Synthesis of the Amending Power: After *Minerva Mills*, the legal position is settled:

Parliament has the power to amend the Constitution under Article 368. Article 13 does

not bar such an amendment. However, the amending power is not absolute. Any amendment that destroys or abrogates the Basic Structure of the Constitution is void.

The Ninth Schedule and the Extension of Basic Structure Review: I.R. Coelho v. State of Tamil Nadu (2007)

A critical question remained: Did the Basic Structure Doctrine, which evolved to test constitutional *amendments*, also apply to ordinary *legislations* placed under the protective umbrella of the Ninth Schedule?

- **The Shield of the Ninth Schedule:** Article 31B, read with the Ninth Schedule, protects laws placed within the Schedule from being challenged on the ground that they violate Fundamental Rights.
- **The Infraction:** Post-*Kesavananda Bharati*, legislatures continued to place laws in the Ninth Schedule, some of which were alleged to be arbitrary and violative of the basic features of the Constitution (e.g., giving 70% or near-100% reservation, completely destroying the right to equality).
- **The Issue**: Could the protective shield of the Ninth Schedule immunize a law from a basic structure challenge?

I.R. Coelho v. State of Tamil Nadu (2007) — 9-Judge Bench Decision

1. **The Cut-off Date: 24th April 1973.** This is the date on which *Kesavananda Bharati* was decided and the Basic Structure Doctrine was born.
2. **The Holding:** Any law inserted into the Ninth Schedule **after 24th April 1973** is not immune from judicial review.
3. **The Test:** Such a law, even though in the Ninth Schedule, can be challenged and tested on the twin grounds of:
   - Violation of Fundamental Rights under Part III.
   - Violation of the Basic Structure of the Constitution.

   If it fails this test, it will be struck down.
4. **Rationale:** The judges in *Kesavananda Bharati* examined the Acts then in the Ninth Schedule and held them valid by balancing social justice with individual rights. Post-1973, unchecked insertion of laws under this blanket immunity would render the Basic Structure Doctrine a dead letter.

Open Research Question: Scope of the Basic Structure Doctrine The lecture concluded with a critical question for academic inquiry: **Does the Basic Structure Doctrine apply only to Constitutional Amendments, or does it also apply to ordinary legislation?** While *I.R. Coelho* applies it to ordinary legislation via the Ninth Schedule route, the broader question of its direct application to any ordinary legislation passed by a legislature is a fertile ground for research and analysis.

Article 14: The Right to Equality — A Jurisprudential Deep Dive

The lecture transitioned to a detailed analysis of Article 14, moving from the general principles of State action to a nuanced problematization of its text.

The Text of Article 14

> *"The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India."*

Dissecting the Text: Three Foundational Elements

i. The Duty-Bearer: "The State"

- The obligation to ensure equality is a vertical right enforceable against the **State**. The definition of "State" under Article 12 is critical.
- **The Test for "State" — *Pradeep Kumar Biswas v. Indian Institute of Chemical Biology* (2002):** To determine whether a body is "State" under Article 12, the settled test is to examine whether it is **financially, functionally, and administratively dominated by or under the deep and pervasive control of the government**.
- **Application to Educational Institutions:** Even private universities (like SRM University, as per the Chennai case reference) have been held to be "State" for the purposes of Article 12, a fortiori a National Law University (MNLU) established by a State Act, with the Chief Justice as Chancellor, and Secretaries (Finance, Law, Education) on the governing board, receiving substantial state funding, is **500% State**.

ii. The Right-Holder: "Any Person"

- The right to equality under Article 14 is unique in its breadth. It is conferred not just on **citizens**, but on **any person**.
- This includes non-citizens, aliens, and even artificial legal persons (companies).
- The word "citizen" is conspicuously absent, in stark contrast to Articles 15, 16, 19, and 29, which are expressly reserved for citizens.

iii. The Territorial Limitation: "Within the Territory of India"

- The guarantee of equality is operational only within the geographical boundaries of the Republic of India.
- This means the State's obligation to provide equal treatment and equal protection of laws applies to all persons present and subject to Indian jurisdiction. It prohibits discrimination even against a foreign national while they are on Indian soil.

The "Salma and Prapti" Hypothetical: Deconstructing the Textualist Argument

To illustrate the absolute textual nature of Article 14, a compelling hypothetical was presented.

The Hypothetical Problem

1. **Facts:** MNLU Nagpur's admission policy grants admission only to citizens of India. The eligibility for CLAT is "Citizen of India."
2. **Parties:**
   - **Prapti**: An Indian citizen. CLAT Rank 300. Gains admission to MNLU Nagpur.
   - **Salma**: A Pakistani citizen. CLAT Rank 290 (higher merit than Prapti). Denied admission solely on the ground of not being an Indian citizen.
3. **The Challenge:** Salma files a Writ Petition under Article 32, challenging the CLAT/MNLU admission policy as violative of Article 14.
4. **Salma's Purely Textualist Argument:**
   (a) Article 14 says "any person," not "any citizen."
   (b) I, Salma, am a "person."
   (c) The State (MNLU, through its admission committee head, Dr. Disha Kher) has denied me equality before the law and equal protection of the laws.
   (d) The policy creates a discriminatory classification between "persons"—one citizen (Prapti) and one non-citizen (me)—and denies me the equal opportunity of admission based on merit, treating my higher marks as inferior to Prapti's lower marks, simply because of my nationality.
   (e) Therefore, the policy is unconstitutional on the face of Article 14.

Deconstructing the Fallacious Student Responses (The Socratic Method)

The instructor systematically dismantles the intuitive but erroneous counter-arguments:

1. **"But the University's Bye-Law says so."**
   - **Rebuttal**: The Constitution is the supreme law of the land (*Art. 13(2)*). Any bye-law, regulation, or even a parliamentary enactment that violates a Fundamental Right is void to the extent of the inconsistency. A bye-law cannot be tested on its own terms; it is tested against the constitutional standard.
2. **"But she is not a citizen, so she has no right."**
   - **Rebuttal**: This is a legislative addition. The word "citizen" is not in Article 14. The framers consciously used "any person" in Article 14 and "citizen" in Article 19. The interpreter cannot re-write the Constitution and insert a word the framers deliberately omitted.

3. **"But Article 29 (or 15) applies only to citizens."**
    - **Rebuttal**: This is a non-sequitur. A challenge under Article 14 must be met and answered on the anvil of Article 14. The fact that a different, uninvoked Article confers rights on a narrower class (citizens) cannot, by "harmonious construction," be used to rewrite and narrow the express broad class ("any person") in Article 14. You cannot defeat a claim for *khichdi* (Article 14) by serving *chicken* (Article 29). They are different provisions for different purposes.
4. **"Equality before law" is different from "Equal protection of laws" and the law itself creates the right for citizens only.**
    - **Rebuttal**: This is a semantic trap. The combined effect of "equality before law" (a negative concept, absence of special privilege) and "equal protection of laws" (a positive concept, equal treatment under equal circumstances) is a comprehensive mandate of non-arbitrariness. If the law itself (the admission policy) draws an arbitrary classification between persons based on nationality for admission to a state-funded institution, it is the very law that is violative of both expressions of equality.
5. **"But there are reasonable restrictions..."**
    - **Rebuttal**: Unlike Article 19, Article 14 does not enumerate specific "reasonable restrictions." A classification to be valid under Article 14 must pass the twin test: (i) The classification must be founded on an **intelligible differentia**, and (ii) The differentia must have a **rational nexus** with the object sought to be achieved by the law. The burden is on the State to prove this nexus is not arbitrary.

The Unresolved Suspense: The Core of the Inquiry

The lecture intentionally leaves the final answer open, underscoring the profound jurisprudential tension it creates.

The Central Conundrum for the Student: If the textualist argument of Article 14 is taken to its logical extreme, any Indian law that prefers its own citizens over non-citizens in any state-provided benefit (education, welfare, etc.) would seemingly be unconstitutional. Yet, such laws are ubiquitous. The task for the student is to discover the legal principle or doctrine that harmonizes the inclusive text of Article 14 with the sovereign right of a State to prefer its own citizens in the distribution of public resources, without resorting to a *non-textual* importation of the word "citizen" into Article 14.

This is the threshold question for the next class, designed to compel a rigorous engagement with the principles of classification, the nature of state beneficence, and the limits of textualism in constitutional interpretation.